judges of the Supreme Court or high courts in state legislatures. It was argued on behalf of the high court judges that the assembly resolution requiring their appearance to provide an explanation for their conduct violated this provision. The Supreme Court agreed, noting that the assembly's resolution was an affront to the independence of the judiciary. Article 211 could not be reduced to a 'meaningless declaration', for it was part of the essential apparatus that ensured that the courts could take difficult, even if incorrect, decisions without fear of political retribution.

Overall, the conclusions in the majority opinion of Chief Justice Gajendragadkar were decisively in favour of the high court. The Supreme Court held that it was within the authority of the high court to consider Keshav Singh's petition, and to release him on bail until it arrived at a decision. Just as Keshav Singh and his advocate Solomon did not commit contempt of the house by bringing proceedings, the high court judges did not do so by entertaining those proceedings. It was not within the authority of the assembly to issue a warrant for the arrest of, or for that matter even call for an explanation from, Solomon and Justices Beg and Sehgal. It followed that the bench of twenty-eight judges of the high court was justified in restraining the assembly from seeking the production of Solomon and the high court judges.

One of the judges wrote a dissenting opinion taking a more nuanced view of the situation. Justice Sarkar disagreed with the majority's opinion that parliamentary privileges would be subordinate to the right to personal liberty in the event of a conflict. This would not be harmonious construction, but preferring one constitutional provision to the exclusion of the other. Perhaps his most controversial conclusion was that it was within the power of the assembly to require an explanation from Solomon and Justices Beg and Sehgal. In his view, implicit in the assembly's power to punish for contempt was the power to investigate the facts to determine whether contempt had been committed in the first place. The thought of high court judges being summoned to offer explanations to the assembly did not seem to cause concern to Justice Sarkar as it did for the others.